PROCEDURES
FAMILY DIVISION
MAGISTRATE KATHRYN HILL

Courtroom:
Indian River County Courthouse
Courtroom 4
2000 16th Avenue
Vero Beach, Florida 32960

Mailing Address:
Indian River County Courthouse
2000 16th Avenue
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Vero Beach, Florida 32960

Email: ircmagistrate@circuit19.org
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1. **REFERRAL TO MAGISTRATE.**

   All post-judgment matters must be referred to the General Magistrate using the form order on Judge Griffin's website.

   Counsel shall promptly prepare the **Order of Referral to General Magistrate** and email in WORD format to the Magistrate's Office.

2. **CHILDREN.** Children may not be brought to the courtroom without prior court authorization.

3. **COMMUNICATION WITH MAGISTRATE'S OFFICE.**

   Email is the method of communication with this office.

   Every email shall:

   - include all counsel and self-represented parties. Failure to do so will result in your email being disregarded;
   - include a short case style, case number, and purpose of the email in the subject line.

   When requesting hearing time, include:

   - the estimated hearing time;
   - certification that you conferred with opposing counsel; and

   Documents attached to emails must have descriptive file names that include the case style and case number. Example: "Smith v Jones 21DR9999 FW Proposed Order"

   Do not:

   - send duplicate emails regarding the same issue within 72 business hours;
   - request status updates on pending orders; or
   - start a new email thread on the same matter.

4. **SELF-REPRESENTED LITIGANTS.**

   When both parties are self-represented, the case will be handled through the Pro Se Case Manager. You must use Form A to communicate about your case. Do not email the Magistrate's office unless the opposing party is represented by an attorney.

   Self-represented litigants must file a Designation of Current Mailing and E-Mail Address (Florida Family Law Form 12.915) to receive orders electronically.

5. **COMPLIANCE WITH MANDATORY DISCLOSURE -** Florida Family Law Rule of Procedure 12.285 must be complied with. Any document required under this rule for any initial or supplemental proceeding **must** be served on the other party for inspection and copying **within 45 days** of service of the initial pleading on the respondent.

6. **CASE MANAGEMENT.** Unless otherwise ordered:

   - Case management hearings will be conducted in all cases involving supplemental petitions for modification.
   - Relocation cases: The party requesting relocation shall schedule a case management conference within **30 days** after service of the supplemental petition.
   - All other modification cases: The filing party shall schedule a case management conference within **60 days** after service.

7. **SCHEDULING HEARINGS.**

   All motions must be filed before hearing time is requested.

   Email the Magistrate Assistant for hearing time. Copy opposing on the email. (See "COMMUNICATION WITH MAGISTRATE'S OFFICE.")

   If opposing fails to respond after two attempts to schedule a hearing (with dates) are made at least 24 hours apart, the requesting party may file a Notice of Hearing (NOH) for one of the dates previously provided. All NOH must include a Good Faith Certificate.

   If scheduling cannot be accomplished after repeated efforts, you may ask the Magistrate Assistant to conduct a joint phone conference for scheduling purposes.

   Counsel/pro se parties must confer with opposing ***before*** requesting hearing time in an effort to resolve the matter being heard.

   Every NOH must include a **Good Faith Certificate** stating:

   - that you conferred with opposing in an attempt to resolve the matter before scheduling the hearing;
   - that you conferred with opposing and have agreed on the amount of time needed for the hearing (for both sides); and
   - that you coordinated the date and time with opposing.

   Failure to include the **Good Faith Certificate** in the NOH may result in the motion being stricken, dismissed, denied, or not set for hearing.

   Additional motions may not be piggy-backed/cross-noticed without agreement of all parties or prior court approval.

   If a hearing cannot be coordinated due to the chronic "unavailability" of a party/attorney, you may ask the Magistrate Assistant to conduct a joint phone conference for scheduling purposes.

8. **HEARING PACKETS.**

   The parties shall submit hearing packets by email to opposing counsel and the Magistrate in accordance with the applicable deadline contained in the Order Setting Trial, Notice of Hearing, or other court order.

   Unless otherwise ordered, hearing packets must be provided at least three days prior to the hearing. If the third day falls on a weekend or holiday, the deadline is the first business day *before* the weekend or holiday.

The hearing packet shall include:

- motion(s);
- NOH;
- proposed recommended order in Word format (mandatory for party who filed the motion; optional for the non-filing party);
- relevant attachments such as parenting plan, child support guidelines;
- applicable case law.

Failure to submit proposed orders may result in the hearing being stricken.

Exhibits shall be submitted in accordance with **Magistrate Hill's Exhibit Policy** on the www.Circuit19.org website, which is incorporated herein by reference.

9. TRIAL.

Mediation must take place before trial may be scheduled.

A Notice for Trial shall include:

- total estimated trial time (after conferral with opposing);
- confirmation that mediation has occurred and date the mediator's report was filed;
- list of all pending matters to be heard.

The parties shall comply with the Order Scheduling Trial and all applicable pretrial deadlines.

10. COURT APPEARANCES.

Zoom:

Unless otherwise ordered, parties and counsel may appear by Zoom for:

- case management conferences;
- non-evidentiary hearings;
- hearings scheduled for 30 minutes or less.

Witnesses appearing remotely must appear by audio *and* video.

Unless both parties agree, requests for remote appearance at evidentiary hearings or trials must comply with Florida Rule of General Practice and Judicial Administration 2.530. If both parties agree, they can notify the Magistrate Assistant by email.

In Person:

All trials and evidentiary hearings exceeding 30 minutes shall be conducted in person unless otherwise ordered. If one side appears via Zoom, the Exhibit Policy for in-person hearings must be adhered to.

11. AGREED ORDERS.

Do not submit agreements/stipulations directly to the Magistrate. Instead, e-file the signed stipulation/agreement through the E-portal.

Submit a copy of the e-filed stipulation/agreement to the Court via email together with a proposed Order Approving Stipulation in WORD format.

12. CANCELLATION OF HEARINGS.

Notices of Cancellation shall be e-filed immediately.

A courtesy copy shall be emailed to the Magistrate's Office when filed, but in no case later than noon on the business day before the hearing.

13. MEDIATION.

All supplemental petitions require mediation before an evidentiary hearing may be scheduled. Unless otherwise ordered, mediation should take place **within 90 days of service**.

Cases with combined gross income of $100,000 or less may qualify for the Court's Family Mediation Program. Financial affidavits must be filed to make the determination.

Orders of Referral to Mediation shall state the parties' combined gross income and confirm that current financial affidavits have been filed.

Cases exceeding that amount shall participate in private mediation unless otherwise ordered.

14. STIPULATIONS/ORDERS:

File the agreement via the E-Portal.

Send an e-filed copy of the agreement along with a separate proposed recommended order in WORD format.

15. WITHDRAWAL OF COUNSEL.

Motions to Withdraw shall comply with Rule 2.505(f), Florida Rules of General Practice and Judicial Administration.

If the motion is filed with the written consent of the client and trial is not imminent, the e-filed motion may be submitted with a proposed order in WORD format.

16. MISCELLANEOUS.

- Emergency motions are governed by Judge Griffin's procedures.
- Original pleadings shall be filed with the Clerk, not the Magistrate.
- Court proceedings are electronically recorded. Parties may retain a court reporter at their own expense.
- Interpreter information is available on the Circuit 19 website.
- Remote administration of oaths shall comply with Florida Supreme Court Administrative Order AOSC20-23, as amended.
- Failure to comply with these Procedures, court orders, or applicable rules may result in sanctions authorized by law.